BHARATIYA NYAYA SANHITA, 2023

Key Provisions — Quick Reference Guide

(Replacing Indian Penal Code, 1860 w.e.f. 1 July 2024)

Chapter I: Comparative Table — IPC vs BNS

Offence	IPC Section	BNS Section	Change in Punishment
Murder	Sec. 302	Sec. 101	Unchanged — Death or Life + Fine
Culpable Homicide	Sec. 304	Sec. 105	Unchanged
Rape	Sec. 376	Sec. 63	Min. 10 yrs → Life, stricter definitions
Robbery	Sec. 390	Sec. 309	Unchanged — Up to 10 years
Dacoity	Sec. 391	Sec. 310	Unchanged — Min. 7 years
Theft	Sec. 378	Sec. 303	Unchanged — Up to 3 years
Cheating	Sec. 420	Sec. 318	Unchanged — Up to 7 years
Sedition (Repealed)	Sec. 124A	—	REPEALED — No equivalent in BNS
Terrorism (New)	—	Sec. 113	NEW — Death/Life imprisonment
Organized Crime (New)	—	Sec. 111	NEW — Min. 5 years to Death

Section 101 — Murder

Whoever commits murder shall be punished with death or imprisonment for life, and shall also be liable to fine. Exception 1: Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation.

Section 63 — Rape

A man is said to commit 'rape' if he penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person. Punishment: Rigorous imprisonment of not less than ten years which may extend to imprisonment for life (20 years), and shall also be liable to fine.

Section 111 — Organised Crime (NEW)

Whoever commits or attempts to commit organised crime shall, if such act has resulted in death of any person, be punishable with death or imprisonment for life, and shall also be liable to fine of not less than ten lakh rupees; and in any other case, be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine of not less than five lakh rupees.

Section 113 — Terrorist Act (NEW)

Whoever commits a terrorist act shall be punished with death or imprisonment for life and shall also be liable to fine. 'Terrorist act' means an act committed with intent to threaten the unity, integrity, sovereignty, security, or economic security of India or with intent to strike terror in the people or any

section of the people in India or in any foreign country.

Key Changes from IPC to BNS

1. Sedition abolished	Section 124A IPC (sedition) has been completely repealed with no BNS equivalent
2. Community service added	BNS introduces community service as a new form of punishment for minor offences
3. Organised crime	New chapter on organised crime and terrorism not present in IPC
4. Gender neutral	Several provisions made gender-neutral to cover male victims
5. Minimum sentences	Several offences now have mandatory minimum sentences